

May 4, 2026
Dept. 9
Probate Tentative Rulings

11.	26PR0075	MATTER OF KELLER LIVING TRUST
Petition		

Petitioner Andreea Keller is the surviving spouse of Decedent, the nominated executor of the decedent's Will and the Trustee of the Keller Living Trust ("Trust"). Respondent Evelyne Keller is the decedent's former spouse. Respondent Charles Schwab & Co., Inc. holds the brokerage account at issue herein.

Decedent died on November 1, 2025, and decedent's testamentary documents consisted of The Keller Living Trust and a "pour-over" Will that devised the residue of his estate to the Trust. Pursuant to the terms of the Trust, the entire Trust corpus passed to the Surviving Spouse without exception, subject to the terms of the Trust.
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A judgment of dissolution was entered in the marriage of the Decedent and Respondent on March 29, 2012, in the Superior Court of California, County of Alameda. A certified copy of the Judgment is attached as Exhibit B. Petitioner herein and Decedent were married July 20, 2013.

The subject of this proceeding, a Charles Schwab brokerage contributory IRA account titled in the name of the decedent and ending in #1777, has a balance of approximately \$37,000. Petitioner alleges on information and belief that the former spouse is listed as beneficiary, but the parties divorced prior to death. Petitioner further alleges on information and belief that the former spouse has refused to relinquish her interest in the account. Charles Schwab has frozen the account due to competing claims, alleging that a court order or mutual agreement of the parties, i.e, Petitioner herein and the designated beneficiary, is required.

Petitioner seeks an order declaring the effect of Probate Code § 5040 and Family Code § 2024 on the beneficiary designation, directing Schwab to disregard any revoked designation in favor of a former spouse, and authorizing Schwab to distribute the account proceeds in accordance with California law.

There is no response by Respondent.

TENTATIVE RULING #11:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.